

Scenario 6 - Conflicting Governing Law

1 Parties

This Agreement is between Genpact LLC and Acme Corporation.

2 Effective Date

The effective date is January 15, 2025.

3 Confidentiality

Each party shall protect Confidential Information and use it only for Project Alpha.

4 Termination

Either party may terminate this Agreement with 30 days written notice.

5 Payment Terms

No fees are due under this NDA, and any approved invoices are payable net 30.

6 Limitation of Liability

Each party's aggregate liability is capped at fees paid in the prior 12 months.

7 Indemnity

Each party shall indemnify the other for third-party claims caused by breach.

8 Governing Law

This Agreement is governed by the laws of Delaware, USA, but venue and exclusive jurisdiction are New York.

9 Auto-Renewal

This Agreement does not auto-renew after expiration.

10 Data Protection

Each party shall comply with GDPR data processing terms, cross-border transfer controls, data subject rights, data protection, privacy, and personal data obligations.